

THE ROLE OVERLAY – THE POSITION, AND THE ADMITTED FACTS

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator.

Black is the text of the role description for the position of Administration Officer, Switchboard Services, Logan Hospital, word for word, with the number of the fact admitting it in brackets. **Blue** is the text of a fact admitted by the Respondent on 8 September 2026 in answer to the notice to admit facts served 28 August 2026, word for word and in full, with its number on that notice in brackets. Admissions are for this proceeding only, under rule 49 of the Industrial Relations (Tribunals) Rules 2011. **Red is navigation only. It is not evidence.** No word of the Appellant's own account appears in this document.

■ **INTERNAL working document.** Five facts were not admitted and are marked where they appear. Nothing in the notice was denied.

A. The position

The role description states:

- [1] In 2026 Metro South Hospital and Health Service provided to the Appellant a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03".
- [2] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".
- [3] That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".
- [4] That role description names the contact for the position as "Chloe Taylor".
- [13] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".
- [14] Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott Hughes as delegate.
- [15] Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker".
- [16] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June 2024.

The role description was provided to the Appellant in 2026. The contemporaneous anchors for the period in issue are the documents at B to H below.

B. The duty to keep the information accurate

The role description states:

- [6] That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".
- [7] That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information".

The Respondent admitted on 8 September 2026:

- [39] On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises."
- [40] That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database."
- [41] That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00".
- [42] That email states that a person wanting an entry updated was to "contact me directly, either via email or extension".
- [43] That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor.
- [44] That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back".
- [45] That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email."
- [46] Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role."
- [47] That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard."
- [48] That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor."
- [54] Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry."
- [55] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.
- [89] On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."
- [90] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.
- [91] On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues."
- [92] The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am.
- [94] On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document."
- [95] That email of the Appellant was sent from the Logan Switch account.

[96] That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024.

[97] The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.

[98] The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.

[100] On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical."

[101] That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."

[102] Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.

[103] That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024.

[104] Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024.

[105] The Respondent's amended List of Documents dated 14 August 2026 does not list any document created on 20 May 2024 recording the discussion referred to in that reply.

[106] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.

[107] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.

[109] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at any time on or before 20 May 2024.

[110] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of the modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024.

The duty to ensure the information held within Switchboard Services is accurate and current is a key responsibility of the position. From 18 July 2023 the access required to perform it was held by others, and the Respondent does not allege it was restored before 18 June 2024.

C. The duty to distribute emergency notifications within protocol timeframes

The role description states:

[8] That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes".

The Respondent admitted on 8 September 2026:

[49] On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".

[50] That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."

[51] That email states: "This new process is effective from today."

[52] That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."

[53] Ms Taylor signed that email as "A/Switchboard Manager".

[56] On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today".

[57] That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46.

[58] That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER".

[59] On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May".

[60] That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am.

[61] That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion.

[62] The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.

[63] The email of Ms Taylor of 9 May 2024 at 9:20 am was sent on the sixth calendar day after the email of Vivian Kwok of 3 May 2024 at 3:06 pm.

[64] The interval between the email of Vivian Kwok of 3 May 2024 at 3:06 pm and the email of Ms Taylor of 9 May 2024 at 9:20 am is five days, eighteen hours and fourteen minutes.

[65] On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "@Pan Jane Wong Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off."

[66] On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", directing that "all calls that switch transfer to the MASPER phone #5223 are being introduced".

[67] Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams."

[68] The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.

[69] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time after 3 May 2024 and before 10:15 am on 9 May 2024.

The duty is expressed in terms of protocols and timeframes. The nine occasions reported by the MASPER Registrar fell while the after-hours arrangement of 15 April 2024 was in force, and the Respondent does not allege the Switchboard was told of them before 10:15 am on 9 May

D. The duty to hold call queues to a minimum under high volume

The role description states:

[5] That role description states, as a key responsibility: "Maintain call queues to minimum at all times".

[10] That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".

The Respondent admitted on 8 September 2026:

[227] The shift commencing at 06:00 on 18 March 2024 fell on a Monday.

[228] A register titled "2024 Emergency Code Register" records, for 17 March 2024, eight entries, including "MET CALL WARD 2H BED 7" at 19:16; "CODE BLUE WARD 2H BED 7" at 19:20 and "MET CALL WARD 2Q BED 5" at 21:16. **[NOT ADMITTED]**

[229] That register records, for 18 March 2024: "CODE GREY QAS TRIAGE AIRLOCK" at 8:48; "MET CALL WARD 6A BED 8" at 9:20; "MET CALL WARD 3DR BED 14" at 11:31; "CANCELLED MET CALL WARD 3DR BED 14" at 11:32; "NEONATAL MET CALL THEATRE 2" at 11:35; and "NEONATAL MET CALL BIRTH SUITES 5" at 13:09. **[NOT ADMITTED]**

[230] Six of the entries recorded in that register for 18 March 2024 bear times between 6:00 and 14:00. **[NOT ADMITTED]**

[231] That register records, for 19 March 2024 at 11:34, "MET CALL WARD 2I BED 20" with the notation "CALLED VIA SWITCHBOARD" [sic]. **[NOT ADMITTED]**

[267] That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."

[268] That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."

The emergency load carried on the two shifts of 17 and 18 March 2024 is the material the Respondent has not admitted. Metro South Health has stated that a spreadsheet of recorded MET calls is available for that period. This is the outstanding item in the request of 9 September 2026.

E. The mandatory requirement of continuous shift work over a 24/7 period

The role description states:

[2] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".

[13] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".

The Respondent admitted on 8 September 2026:

[211] On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.

[212] That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".

[213] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024.

[214] On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."

[215] That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".

[216] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024.

[217] On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."

[218] On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."

[219] That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate".

[220] That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".

[221] That email of Ms Reese to Mr Mackenzie Pritchard of 10 May 2024 states: "Cory's roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change".

[222] On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."

[223] That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.

[224] By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the rostering "currently provides more than 10-hour breaks between shifts".

[225] That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred."

[226] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated".

[232] That amended statement of facts and contentions states at paragraph 22(e): "says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts".

[233] That amended statement of facts and contentions states at paragraph 22(b): "says that the appellant could refuse shifts at anytime".

[234] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.

[235] The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED".

[236] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".

[237] That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".

[239] Review Decision 69983 records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020.

[240] That decision records: "The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day."

[241] That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday".

[242] Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024."

[243] That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break".

[244] That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this".

[245] That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you".

[246] That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment".

[247] That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020."

[248] That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward."

[249] The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.

[250] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any time between 9 April 2024 and 1 May 2024.

[257] Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances".

[258] That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."

[259] That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break."

[260] That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."

The position is a continuous shift working role. The two shifts of 17 and 18 March 2024 produced a break the Respondent's own review decision measures at seven hours and finds to be unreasonable management action.

F. Reporting to the Switchboard Manager, and the named contact for the position

The role description states:

[3] That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".

[4] That role description names the contact for the position as "Chloe Taylor".

The Respondent admitted on 8 September 2026:

[70] Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm".

[71] On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon."

[72] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm."

[73] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.

[74] On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times".

[75] That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed."

[76] On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct".

[77] That reply of Ms Reese asked the Appellant to retract his email.

[78] On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours."

[79] On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chloe's business hours I will follow up on the issues raised."

[80] That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?"

[81] On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."

[82] That email states that Ms Taylor's office hours "can vary", and states: "I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30."

[83] That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024".

[84] That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."

[85] On 18 June 2024 at 8:58 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and Ms Stibbard, with the subject "Good morning Team.", which states: "I am taking today off, and hopefully will be back tomorrow."

[86] That email of 18 June 2024 states: "I am sorry I haven't been there for you all over the past week."

[87] That email of 18 June 2024 states: "Ellen will not be in today, however Tammy is in the office if anything urgent."

[88] The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm.

[162] On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."

[163] The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile".

[164] The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile".

[165] Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor.

[166] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply with the process required of him.

The position reports to one manager and names one contact. Both the process for notifying unavailability and the after-hours process required that contact to be reached.

G. The duty to exercise judgement where procedures are not defined

The role description states:

[9] That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".

[11] That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment".

The Respondent admitted on 8 September 2026:

[143] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor [sic] did remove pages from the Communication Book on or around 6 June 2023".

[144] That amended statement of facts and contentions states at paragraph 12(b): "says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email".

[145] On 6 June 2023 at 4:05 pm Ms Taylor sent an email to Ms Reese with the subject "Fwd: Communication Book Update".

[146] That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry."

[147] That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate."

[148] Beneath it in the same document is Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, subject "Communication Book Update", copied to Switchboard staff including the Appellant.

[149] That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team."

[150] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the entry Ms Taylor removed from the Communication Book, or its author.

[151] That amended statement of facts and contentions, as presently constituted, does not allege that the removed page has been located, or that any copy of it exists.

[152] That amended statement of facts and contentions, as presently constituted, does not allege that any entry made by the Appellant remains in the Communication Book.

[153] That amended statement of facts and contentions, as presently constituted, does not allege that the Communication Book ceased to be in the possession of Metro South Hospital and Health Service at any time during the Appellant's employment.

[154] The Respondent's amended List of Documents dated 14 August 2026 does not list the Communication Book, nor any page or entry from it. **[NOT ADMITTED]**

Two documented occasions on which judgement was exercised within the scope of the role: the Communication Book entry of 6 June 2023, and the recommendation of 20 May 2024 at section B above.

H. The duty to follow occupational health and safety policies and procedures

The role description states:

[12] That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".

The Respondent admitted on 8 September 2026:

[263] By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."

[264] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."

[265] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."

[266] That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."

[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.

[270] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.

[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.

[272] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.

[273] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.

The duty is to follow the policies and procedures relating to the work being undertaken. The employer has stated in writing what did and did not exist for this position over the period.

I. What the Respondent does not allege about the Appellant's performance of the role

The Respondent admitted on 8 September 2026:

[305] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.

[306] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.

[307] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part of a disciplinary or performance management process.

[308] Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.

Four negatives, each tied to the pleading as presently constituted.